

IN THE SENATE

SENATE BILL NO. 1412

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING CHAPTER 1, TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 33-145, IDAHO CODE, TO ESTABLISH THE IDAHO STUDENT SAFETY AND EDUCATOR DISCLOSURE ACT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 1, Title 33, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 33-145, Idaho Code, and to read as follows:

33-145. IDAHO STUDENT SAFETY AND EDUCATOR DISCLOSURE ACT. (1) The legislature finds that student safety is a paramount responsibility of the state and that uniform statewide reporting and disclosure requirements in the hiring of school employees is necessary to protect good faith disclosures and prevent concealment of misconduct against a student.

(2) For the purposes of this section:

(a) "Covered individual" means any school personnel.

(b) "Educational entity" means any school district, public charter school, or private school providing instruction in kindergarten through grade 12, inclusive, or any combination thereof.

(c) "Misconduct" means any conduct by a covered individual that violates the provisions of section 33-1208, Idaho Code, relating to educator-student relationships or the code of ethics for Idaho professional educators relating to educator-student relationships.

(d) "Pending investigation" means any internal, administrative, regulatory, or criminal investigation that has been initiated and has not reached a final disposition.

(3) An educational entity shall not conduct an internal review or investigation of alleged abuse, abandonment, or neglect of a child in lieu of reporting to law enforcement as required by section 16-1605, Idaho Code. Nothing in this subsection shall be construed to prohibit an educational entity from taking administrative or employment action or conducting an internal review or investigation after a report has been made in compliance with section 16-1605, Idaho Code.

(4) Prior to hiring an applicant, an educational entity that is a school district employer shall require an applicant to provide sworn written statements disclosing any pending or prior investigations, resignations during investigations or in lieu of contemplated disciplinary action, or disciplinary actions involving the applicant for misconduct in connection with employment or professional licensure or certification. Any applicant who makes a material misrepresentation or willful omission related to the disclosure statements or information required in this subsection shall be

1 subject to immediate termination of employment or rescission of such appli-
2 cant's offer of employment or employment contract.

3 (5) (a) Prior to hiring an applicant, any educational entity that is not
4 a school district employer shall:

5 (i) Require the applicant to sign a statement authorizing the ap-
6 plicant's current and past employers for the past ten (10) years to
7 provide the hiring educational entity with information regarding
8 any pending or prior investigations, resignations during investi-
9 gations or in lieu of contemplated disciplinary action, or disci-
10 plinary actions for misconduct involving the applicant; and

11 (ii) Request in writing, electronic or otherwise, that the appli-
12 cant's current and past employers for the past ten (10) years pro-
13 vide the information described in subparagraph (i) of this para-
14 graph, if any. The request shall include a copy of the statement
15 signed by the applicant provided in subparagraph (i) of this para-
16 graph. The process provided in section 33-1210(2), Idaho Code,
17 shall apply to requests made by educational entities pursuant to
18 this subsection.

19 (b) An applicant's current or past employers shall respond to any re-
20 quest received pursuant to this subsection. An educational entity
21 shall release such current and past employers, including employees
22 acting on behalf of an employer, from any civil liability for provid-
23 ing such information in good faith. A disclosure made pursuant to this
24 section shall be considered to be made in good faith unless the employer
25 knew the information disclosed was false or misleading.

26 (6) Any resignation during investigations or in lieu of contemplated
27 disciplinary action, termination, or administrative leave that occurs dur-
28 ing an investigation of misconduct by a covered individual shall be referred
29 to the Idaho professional standards commission if the covered individual
30 holds an Idaho educator certificate. If the Idaho professional standards
31 commission takes disciplinary action against a covered individual as a
32 result of the information it receives pursuant to this subsection, the
33 commission shall update the covered individual's certification status ac-
34 cordingly.

35 (7) A private school employee may bring a claim against a private school
36 employer under the provisions of chapter 21, title 6, Idaho Code, only if the
37 employee's good faith allegations made pursuant to the provisions of section
38 6-2104, Idaho Code, involve misconduct or a violation or suspected violation
39 of section 16-1605, Idaho Code. All provisions of chapter 21, title 6, Idaho
40 Code, shall apply to such a claim. For purposes of such claim, the private
41 school employer shall be considered an employer as that term is defined in
42 section 6-2103, Idaho Code, and the private school employee shall be consid-
43 ered an employee as that term is defined in section 6-2103, Idaho Code.

44 SECTION 2. An emergency existing therefor, which emergency is hereby
45 declared to exist, this act shall be in full force and effect on and after
46 July 1, 2026.